

STATE OF NEW YORK

1862--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. RAJKUMAR -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to awards made to crime victims

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 8 of section 621 of the executive law, as added
2 by chapter 197 of the laws of 1983, is amended to read as follows:

3 8. "Essential personal property" shall mean articles of personal prop-
4 erty necessary and essential to the health, welfare or safety of the
5 victim.

6 (a) Personal property necessary and essential to the welfare of the
7 victim shall mean personal property of a victim that is lost, damaged,
8 or stolen as a result of a crime and for which reimbursement or replace-
9 ment is reasonably necessary for the victim to restore stability or
10 maintain a reasonable and/or basic standard of living.

11 (b) The office shall promulgate rules and regulations for the determi-
12 nation and approval of what constitutes property reasonably necessary to
13 restore or maintain a reasonable and/or basic standard of living
14 consistent with this article.

15 § 2. Subdivision 9 of section 631 of the executive law is amended by
16 adding four new paragraphs (c), (d), (e) and (f) to read as follows:

17 (c) For property necessary and essential to the welfare of the victim,
18 the office may request that the claimant provide estimates or receipts
19 for personal property lost, damaged or stolen as a result of the crime.
20 A claimant's inability to produce a receipt for lost, stolen or damaged
21 personal items shall not in itself disqualify a claimant from receiving

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 reimbursement for such items. The office shall consider all the facts
2 and circumstances of each case before making a determination.

3 (d) Personal property necessary and essential to the welfare of the
4 victim shall include, but not be limited to, the following items lost,
5 damaged, or stolen as a result of the crime:

6 (i) clothing;

7 (ii) shoes;

8 (iii) furniture;

9 (iv) appliances;

10 (v) electronics; and

11 (vi) bedding.

12 (e) Property necessary and essential to the welfare of the victim
13 shall include, but not be limited to, the following:

14 (i) Sofa, couch, loveseat, or chair;

15 (ii) Dining table;

16 (iii) Bed/mattress;

17 (iv) Sheets, pillows, comforters and blankets;

18 (v) Lamp;

19 (vi) Refrigerator;

20 (vii) Microwave;

21 (viii) Stove;

22 (ix) Dishes and eating utensils;

23 (x) Television;

24 (xi) Telephone or cell phone;

25 (xii) Toys for children under six years old; and

26 (xiii) Stroller.

27 (f) Eligible essential personal property as specified in paragraph (e)
28 of this subdivision, including any property not specifically enumerated
29 in paragraph (e) of this subdivision, may be reimbursed at a reasonable
30 rate as determined by the office, provided that such rate does not
31 exceed twenty-five hundred dollars.

32 § 3. This act shall take effect immediately.